

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1179

Introduced by DeBoer, 10.

Read first time January 21, 2026

Committee:

1 A BILL FOR AN ACT relating to the Legislature; to amend sections 2-409,
2 2-3226.01, 2-3414, 37-431, 37-1406, 46-1305, 50-447, 50-448, 54-642,
3 72-2008, 84-120, 86-331, 86-333, 86-515, and 86-524, Reissue Revised
4 Statutes of Nebraska, sections 2-3615, 39-2825, and 66-2305, Revised
5 Statutes Cumulative Supplement, 2024, and sections 46-1304, 50-1601,
6 61-227, 61-520, 70-1003, 81-15,327, 81-1604, and 86-1068, Revised
7 Statutes Supplement, 2025; to change references relating to the
8 Agriculture Committee of the Legislature, the Natural Resources
9 Committee of the Legislature, and the Transportation and
10 Telecommunications Committee of the Legislature and the chairpersons
11 of such committees for purposes of implementing renamed and merged
12 standing committee structures; to add references to the
13 Telecommunications and Technology Committee of the Legislature; to
14 harmonize provisions; to provide an operative date; and to repeal
15 the original sections.
16 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 2-409, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 2-409 (1) The department shall provide technical and legal
4 assistance in the formation of a producer learning community comprised of
5 active agricultural producers, landowners, and others who have an
6 interest in soil health and water quality. The department shall assist
7 the producer learning community in building awareness and knowledge
8 relating to soil health and water quality to guide agricultural producers
9 and landowners in making informed decisions in order to bring about a
10 more rapid and widespread adoption of best management practices. The
11 department shall hire a facilitator to lead a collaborative effort to
12 organize the producer learning community and assist the producer learning
13 community in acquiring gifts, grants, and sponsorships. The department
14 shall authorize the facilitator to serve as an ex officio member of the
15 producer learning community and may locate the facilitator outside of the
16 city of Lincoln.

17 (2) The department may partner or contract with any entity or
18 entities that have resources that would assist in the formation of the
19 producer learning community, including, but not limited to, the
20 University of Nebraska and any association of natural resources
21 districts. The department may also collaborate with the Corn Development,
22 Utilization, and Marketing Board, the Soybean Development, Utilization,
23 and Marketing Board, the Grain Sorghum Development, Utilization, and
24 Marketing Board, the Nebraska Wheat Development, Utilization, and
25 Marketing Board, and any private farm and ranch associations or
26 membership organization.

27 (3) Because of the state's diversity of soils, topography, rainfall,
28 cropping systems, and other environmental factors, one set of healthy
29 soil management practices will not fit the entire state and such
30 practices will differ by region. The department shall divide the state
31 into different regions in which to establish demonstration and research

1 farms that are representative of each region's particular agricultural
2 diversity. In establishing such regions, the department may use the land
3 management areas of the Natural Resources Conservation Service of the
4 United States Department of Agriculture, the state's natural resources
5 district boundaries, and the Nebraska Extension Engagement Zones of the
6 University of Nebraska Institute of Agriculture and Natural Resources as
7 guidance in establishing boundaries. The department may enter into lease
8 agreements with private landowners for the purpose of establishing
9 demonstration and research farms.

10 (4) Beginning in 2022 and through 2027, the department shall submit
11 an annual report on or before December 31 to the Governor and
12 electronically to the Agriculture ~~Committee of the Legislature~~ and the
13 Natural Resources Committee of the Legislature to report on the status
14 and progress of implementing the Resilient Soils and Water Quality Act
15 and any impacts and accomplishments made in protecting and improving soil
16 and water quality across the state.

17 **Sec. 2.** Section 2-3226.01, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 2-3226.01 (1) In order to implement its duties and obligations under
20 the Nebraska Ground Water Management and Protection Act and in addition
21 to other powers authorized by law, the board of a district with
22 jurisdiction that is part of a river basin for which the district has, in
23 accordance with section 46-715, adopted an integrated management plan
24 which references section 2-3226.04 and explicitly states its intent in
25 the plan to utilize qualified projects described in section 2-3226.04 may
26 issue negotiable bonds and refunding bonds of the district and entitled
27 river-flow enhancement bonds, with terms determined appropriate by the
28 board, payable by (a) funds granted to such district by the state or
29 federal government for one or more qualified projects, (b) the occupation
30 tax authorized by section 2-3226.05, or (c) the levy authorized by
31 section 2-3225. The district may issue the bonds or refunding bonds

1 directly, or such bonds may be issued by any joint entity as defined in
2 section 13-803 whose member public agencies consist only of qualified
3 natural resources districts or by any joint public agency as defined in
4 section 13-2503 whose participating public agencies consist only of
5 qualified natural resources districts, in connection with any joint
6 project which is to be owned, operated, or financed by the joint entity
7 or joint public agency for the benefit of its member natural resources
8 districts. For the payment of such bonds or refunding bonds, the district
9 may pledge one or more permitted payment sources.

10 (2) Within forty-five days after receipt of a written request by the
11 Agriculture and Natural Resources Committee of the Legislature, the
12 qualified natural resources districts shall submit an electronic report
13 to the committee containing an explanation of existing or planned
14 activities for river-flow enhancement, the revenue source for
15 implementing such activities, and a description of the estimated benefit
16 or benefits to the district or districts.

17 (3) If a district uses the proceeds of a bond issued pursuant to
18 this section for the purposes described in subdivision (1) of section
19 2-3226.04 or the state uses funds for those same purposes, the agreement
20 to acquire water rights by purchase or lease pursuant to such subdivision
21 shall identify (a) the method of payment, (b) the distribution of funds
22 by the party or parties receiving payments, (c) the water use or rights
23 subject to the agreement, and (d) the water use or rights allowed by the
24 agreement. If any irrigation district is party to the agreement, the
25 irrigation district shall allocate funds received under such agreement
26 among its users or members in a reasonable manner, giving consideration
27 to the benefits received and the value of the rights surrendered for the
28 specified contract period.

29 **Sec. 3.** Section 2-3414, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 2-3414 The director shall request a hearing by the Legislature's

1 Committee on Agriculture and Natural Resources when petitioned by either
2 fifteen percent of the egg or turkey producers or any number of producers
3 representing thirty percent of the eggs or turkeys upon which fees are
4 being collected to determine whether or not there is need to amend or
5 repeal sections 2-3401 to 2-3416.

6 **Sec. 4.** Section 2-3615, Revised Statutes Cumulative Supplement,
7 2024, is amended to read:

8 2-3615 (1) The membership districts are as follows:

9 (a) District 1. The counties of Butler, Saunders, Douglas, Sarpy,
10 Seward, Lancaster, Cass, Otoe, Saline, Jefferson, Gage, Johnson, Nemaha,
11 Pawnee, and Richardson;

12 (b) District 2. The counties of Adams, Clay, Fillmore, Franklin,
13 Webster, Nuckolls, and Thayer;

14 (c) District 3. The counties of Merrick, Polk, Hamilton, and York;

15 (d) District 4. The counties of Knox, Cedar, Dixon, Dakota, Pierce,
16 Wayne, Thurston, Madison, Stanton, Cuming, Burt, Colfax, Dodge, and
17 Washington;

18 (e) District 5. The counties of Sherman, Howard, Dawson, Buffalo,
19 and Hall;

20 (f) District 6. The counties of Hayes, Frontier, Gosper, Phelps,
21 Kearney, Hitchcock, Red Willow, Furnas, and Harlan;

22 (g) District 7. The counties of Boyd, Holt, Antelope, Garfield,
23 Wheeler, Boone, Platte, Valley, Greeley, and Nance; and

24 (h) District 8. The counties of Sioux, Dawes, Box Butte, Sheridan,
25 Scotts Bluff, Banner, Kimball, Morrill, Cheyenne, Garden, Deuel, Cherry,
26 Keya Paha, Brown, Rock, Grant, Hooker, Thomas, Blaine, Loup, Arthur,
27 McPherson, Logan, Custer, Keith, Lincoln, Perkins, Chase, and Dundy.

28 (2) The board may provide recommendations to the Agriculture and
29 Natural Resources Committee of the Legislature for potential changes to
30 the list of counties that make up each membership district.

31 **Sec. 5.** Section 37-431, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 37-431 (1)(a) The Nebraska Habitat Fund is created. The commission
3 shall remit fees received for annual and multiple-year habitat stamps and
4 annual and multiple-year Nebraska migratory waterfowl stamps to the State
5 Treasurer for credit to the Nebraska Habitat Fund. Any money in the fund
6 available for investment shall be invested by the state investment
7 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
8 State Funds Investment Act. Up to twenty-five percent of the annual
9 receipts of the fund may be spent by the commission to provide access to
10 private wildlife lands and habitat areas, and the remainder of the fund
11 shall not be spent until the commission has presented a habitat plan to
12 the Committee on Appropriations of the Legislature for its approval.

13 (b) Fees received for lifetime habitat stamps and lifetime Nebraska
14 migratory waterfowl stamps under the Game Law shall be credited to the
15 Nebraska Habitat Fund. Twenty-five percent of the fees for such stamps
16 shall not be expended but may be invested by the state investment officer
17 pursuant to the Nebraska Capital Expansion Act and the Nebraska State
18 Funds Investment Act. Income from such investments may be expended by the
19 commission pursuant to section 37-432.

20 (2)(a) The Nebraska Aquatic Habitat Fund is created. The commission
21 shall remit fees received for annual and multiple-year aquatic habitat
22 stamps and one dollar of the one-day fishing permit fee as provided in
23 section 37-426 to the State Treasurer for credit to the Nebraska Aquatic
24 Habitat Fund. Any money in the fund available for investment shall be
25 invested by the state investment officer pursuant to the Nebraska Capital
26 Expansion Act and the Nebraska State Funds Investment Act. Up to thirty
27 percent of the annual receipts of the fund may be spent by the commission
28 to provide public waters angler access enhancements and to provide
29 funding for the administration of programs related to aquatic habitat and
30 public waters angler access enhancements, and the remainder of the fund
31 shall not be spent until the commission has presented a habitat plan to

1 the Committee on Appropriations and the Committee on Agriculture and
2 Natural Resources of the Legislature for their approval.

3 (b) Fees received for lifetime aquatic habitat stamps shall be
4 credited to the Nebraska Aquatic Habitat Fund and shall not be expended
5 but may be invested by the state investment officer pursuant to the
6 Nebraska Capital Expansion Act and the Nebraska State Funds Investment
7 Act. Income from such investments may be expended by the commission
8 pursuant to section 37-432.

9 (3) The secretary of the commission and any county clerk or public
10 official designated to sell habitat stamps, aquatic habitat stamps, or
11 Nebraska migratory waterfowl stamps shall be liable upon their official
12 bonds or equivalent commercial insurance policy for failure to remit the
13 money from the sale of the stamps, as required by sections 37-426 to
14 37-433, coming into their hands. Any agent who receives stamp fees and
15 who fails to remit the fees to the commission within a reasonable time
16 after demand by the commission shall be liable to the commission in
17 damages for double the amount of the funds wrongfully withheld. Any agent
18 who purposefully fails to remit such fees with the intention of
19 converting them is guilty of theft. The penalty for such violation shall
20 be determined by the amount converted as specified in section 28-518.

21 **Sec. 6.** Section 37-1406, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 37-1406 (1) The adaptive management plan required under section
24 37-1404 shall be updated at least once every three years following its
25 initial development. The plan shall be submitted to the Governor and the
26 Agriculture and Natural Resources Committee of the Legislature. The plan
27 submitted to the committee shall be submitted electronically.

28 (2) The Nebraska Invasive Species Council shall submit an annual
29 report of its activities to the Governor and the Agriculture and Natural
30 Resources Committee of the Legislature by December 15 of each year. The
31 annual report shall include an evaluation of progress made in the

1 preceding year. The report submitted to the committee shall be submitted
2 electronically.

3 (3) The council shall complete the initial adaptive management plan
4 within three years after April 6, 2012.

5 (4) Prior to the start of the 2015 legislative session, the council
6 shall submit electronically a report to the Agriculture and Natural
7 Resources Committee of the Legislature that makes recommendations as to
8 the extension or modification of the council.

9 (5) The council may establish advisory and technical subcommittees
10 that the council considers necessary to aid and advise it in the
11 performance of its functions.

12 **Sec. 7.** Section 39-2825, Revised Statutes Cumulative Supplement,
13 2024, is amended to read:

14 39-2825 (1) A public-private partnership delivery method may be used
15 for projects under the Transportation Innovation Act as provided in this
16 section and rules and regulations adopted and promulgated pursuant to
17 this section only to the extent allowed under the Constitution of
18 Nebraska. State contracts using this method shall be awarded by
19 competitive negotiation.

20 (2) A contracting agency utilizing a public-private partnership
21 shall continue to be responsible for oversight of any function that is
22 delegated to or otherwise performed by a private partner.

23 (3) On or before July 1, 2023, the Director-State Engineer shall
24 adopt and promulgate rules and regulations setting forth criteria to be
25 used in determining when a public-private partnership is to be used for a
26 particular project. The rules and regulations shall reflect the intent of
27 the Legislature to promote and encourage the use of public-private
28 partnerships in the State of Nebraska. The Director-State Engineer shall
29 consult with design-builders, progressive design-builders, construction
30 managers, other contractors and design professionals, including engineers
31 and architects, and other appropriate professionals during the

1 development of the rules and regulations.

2 (4) A request for proposals for a project utilizing a public-private
3 partnership shall include at a minimum:

4 (a) The parameters of the proposed public-private partnership
5 agreement;

6 (b) The duties and responsibilities to be performed by the private
7 partner or private partners;

8 (c) The methods of oversight to be employed by the contracting
9 agency;

10 (d) The duties and responsibilities that are to be performed by the
11 contracting agency and any other parties to the contract;

12 (e) The evaluation factors and the relative weight of each factor to
13 be used in the scoring of awards;

14 (f) Plans for financing and operating the project and the revenues,
15 service payments, bond financings, and appropriations of public funds
16 needed for the qualifying project;

17 (g) Comprehensive documentation of the experience, capabilities,
18 capitalization and financial condition, and other relevant qualifications
19 of the private entity submitting the proposal;

20 (h) The ability of a private partner or private partners to quickly
21 respond to the needs presented in the request for proposals and the
22 importance of economic development opportunities represented by the
23 project. In evaluating proposals, preference shall be given to a plan
24 that includes the involvement of small businesses as subcontractors, to
25 the extent that small businesses can provide services in a competitive
26 manner, unless any preference interferes with the qualification for
27 federal or other funds; and

28 (i) Other information required by the contracting agency to evaluate
29 the proposals submitted and the overall proposed public-private
30 partnership.

31 (5) A private entity desiring to be a private partner shall

1 demonstrate to the satisfaction of the contracting agency that it is
2 capable of performing any duty, responsibility, or function it may be
3 authorized or directed to perform as a term or condition of the public-
4 private partnership agreement.

5 (6) A request for proposals may be canceled, or all proposals may be
6 rejected, if it is determined in writing that such action is taken in the
7 best interest of the State of Nebraska and approved by the purchasing
8 officer.

9 (7) Upon execution of a public-private partnership agreement, the
10 contracting agency shall ensure that the contract clearly identifies that
11 a public-private partnership is being utilized.

12 (8) The department shall:

13 (a) Adhere to the rules and regulations adopted and promulgated
14 under this section when utilizing a public-private partnership for
15 financing capital projects; and

16 (b) Electronically report annually to the Appropriations Committee
17 of the Legislature and the Transportation and ~~Telecommunications~~
18 Committee of the Legislature regarding private-public partnerships which
19 have been considered or are approved pursuant to this section.

20 **Sec. 8.** Section 46-1304, Revised Statutes Supplement, 2025, is
21 amended to read:

22 46-1304 The Department of Water, Energy, and Environment shall
23 prepare a report outlining the extent of ground water quality monitoring
24 conducted by natural resources districts during the preceding calendar
25 year. The department shall analyze the data collected for the purpose of
26 determining whether or not ground water quality is degrading or improving
27 and shall present the results electronically to the Agriculture and
28 Natural Resources Committee of the Legislature beginning December 1,
29 2001, and each year thereafter. The districts shall submit in a timely
30 manner all ground water quality monitoring data collected to the
31 department or its designee. The department shall use the data submitted

1 by the districts in conjunction with all other readily available and
2 compatible data for the purposes of the annual ground water quality trend
3 analysis.

4 **Sec. 9.** Section 46-1305, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 46-1305 Each natural resources district shall submit electronically
7 an annual report to the Agriculture and Natural Resources Committee of
8 the Legislature detailing all water quality programs conducted by the
9 district in the preceding calendar year. The report shall include the
10 funds received and expended for water quality projects and a listing of
11 any unfunded projects. The first report shall be submitted on or before
12 December 1, 2001, and then each December 1 thereafter.

13 **Sec. 10.** Section 50-447, Reissue Revised Statutes of Nebraska, is
14 amended to read:

15 50-447 (1) It is the intent of the Legislature to support and
16 facilitate a study by the Agriculture and Natural Resources Committee of
17 the Legislature to identify policy instruments available to the
18 Legislature and the people of Nebraska, including, as appropriate, but
19 not necessarily requiring or limited to, modification of Article XII,
20 section 8, of the Constitution of Nebraska, in order to foster and
21 enhance legal, social, and economic conditions in Nebraska consistent
22 with and which advance those state interests that exist in the structure,
23 development, and progress of agricultural production.

24 (2) Within the limits of funds appropriated for such purpose, the
25 Executive Board of the Legislative Council may, in coordination and
26 cooperation with the Agriculture and Natural Resources Committee of the
27 Legislature, commission experts in the fields of agricultural economics,
28 agricultural law, commerce clause jurisprudence, and other areas of study
29 and practice to provide assistance, specific research or reports, or
30 presentations in order to assist the Agriculture and Natural Resources
31 Committee of the Legislature in carrying out the intent of the

1 Legislature under this section.

2 **Sec. 11.** Section 50-448, Reissue Revised Statutes of Nebraska, is
3 amended to read:

4 50-448 (1) It is the intent of the Legislature that the Attorney
5 General perform, acquire, and otherwise cause to be made available such
6 research as may be appropriate to inform and assist the Agriculture and
7 Natural Resources Committee of the Legislature in identifying policy
8 instruments available to the Legislature and the people of Nebraska,
9 including, as appropriate, but not necessarily requiring or limited to,
10 modification of Article XII, section 8, of the Constitution of Nebraska,
11 in order to foster and enhance legal, social, and economic conditions in
12 Nebraska consistent with and which advance those state interests that
13 exist in the structure, development, and progress of agricultural
14 production in Nebraska.

15 (2) The Attorney General may contract with experts in the fields of
16 agricultural economics, agricultural law, commerce clause jurisprudence,
17 and other areas of study and practice to assist the Attorney General in
18 carrying out the intent of the Legislature under this section.

19 **Sec. 12.** Section 50-1601, Revised Statutes Supplement, 2025, is
20 amended to read:

21 50-1601 (1) The Infrastructure Review Task Force is created.

22 (2) The task force shall:

23 (a) Review and analyze Nebraska's transportation infrastructure
24 network;

25 (b) Examine and consider Nebraska's historic transportation
26 infrastructure development efforts and expected future transportation
27 infrastructure needs;

28 (c) Utilize information and research available from the annual
29 report on the needs of the state highway system prepared by the
30 Department of Transportation and any other information or resources
31 available to the department;

1 (d) Examine the status and condition of Nebraska's transportation
2 infrastructure with consideration given to highway safety concerns and
3 make recommendations as to how Nebraska might maintain and ensure safe
4 transportation infrastructure now and in the future;

5 (e) Consider transportation through the lens of its economic impact
6 on Nebraska; and

7 (f) Research any federal funding that may be available to Nebraska
8 and make recommendations as to how Nebraska might obtain and use such
9 funds.

10 (3)(a) The task force consists of the following members:

11 (i) The Governor;

12 (ii) A designee of the Governor;

13 (iii) The chairperson of the Revenue Committee of the Legislature;

14 (iv) The chairperson of the Transportation and ~~Telecommunications~~
15 Committee of the Legislature;

16 (v) The Speaker of the Legislature;

17 (vi) The Director-State Engineer;

18 (vii) The Tax Commissioner; and

19 (viii) Three members of the Legislature appointed by the Executive
20 Board of the Legislative Council.

21 (b) Members of the task force who are not members of the Legislature
22 shall be nonvoting, ex officio members.

23 (4) The chairperson of the task force shall be the chairperson of
24 the Revenue Committee of the Legislature. Any staff support needed for
25 the task force shall be fulfilled by the staff of the Revenue Committee
26 of the Legislature.

27 (5) The members of the task force shall serve on the task force
28 without compensation.

29 (6) On or before December 1 of each year, the task force shall
30 submit a report containing the results of its work study and its
31 recommendations, if any, together with drafts of legislation necessary to

1 carry out its recommendations. The reports shall be submitted
2 electronically to the Clerk of the Legislature.

3 **Sec. 13.** Section 54-642, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 54-642 On or before November 1 of each year, the department shall
6 submit electronically a report to the Legislature in sufficient detail to
7 document all costs incurred in the previous fiscal year in carrying out
8 the Commercial Dog and Cat Operator Inspection Act. The report shall
9 identify costs incurred by the department to administer the act and shall
10 detail costs incurred by primary activity. The department shall also
11 provide a breakdown by category of all revenue credited to the Commercial
12 Dog and Cat Operator Inspection Program Cash Fund in the previous fiscal
13 year. The Agriculture and Natural Resources Committee and Appropriations
14 Committee of the Legislature shall review the report to ascertain program
15 activity levels and to determine funding requirements of the program.

16 **Sec. 14.** Section 61-227, Revised Statutes Supplement, 2025, is
17 amended to read:

18 61-227 The Department of Water, Energy, and Environment shall
19 convene a plan development group which shall be housed and staffed for
20 administrative purposes within such department. The Department of Water,
21 Energy, and Environment shall engage with federal, state, and local
22 agency and community stakeholders in the development of the state flood
23 mitigation plan, including, but not limited to, the Department of
24 Transportation, the Department of Economic Development, the Department of
25 Agriculture, the Nebraska Emergency Management Agency, natural resources
26 districts, the United States Department of Agriculture, the United States
27 Army Corps of Engineers, the United States Geological Survey, the Federal
28 Emergency Management Agency, the University of Nebraska, representatives
29 of counties, municipalities, and other political subdivisions, and the
30 Agriculture and Natural Resources Committee of the Legislature. The
31 Department of Water, Energy, and Environment may engage other sources to

1 provide technical expertise as needed.

2 **Sec. 15.** Section 61-520, Revised Statutes Supplement, 2025, is
3 amended to read:

4 61-520 (1) A public-private partnership delivery method may be used
5 for projects under the Public Water and Natural Resources Project
6 Contracting Act as provided in this section and rules and regulations
7 adopted and promulgated pursuant to this section only to the extent
8 allowed under the Constitution of Nebraska. State contracts using this
9 method shall be awarded by competitive negotiation.

10 (2) The department utilizing a public-private partnership shall
11 continue to be responsible for oversight of any function that is
12 delegated to or otherwise performed by a private partner.

13 (3) On or before July 1, 2024, the Director of Water, Energy, and
14 Environment shall adopt and promulgate rules and regulations setting
15 forth criteria to be used in determining when a public-private
16 partnership is to be used for a particular project. The rules and
17 regulations shall reflect the intent of the Legislature to promote and
18 encourage the use of public-private partnerships in the State of
19 Nebraska. The Director of Water, Energy, and Environment shall consult
20 with design-builders, progressive design-builders, construction managers,
21 other contractors and design professionals, including engineers and
22 architects, and other appropriate professionals during the development of
23 the rules and regulations.

24 (4) A request for proposals for a project utilizing a public-private
25 partnership shall include at a minimum:

26 (a) The parameters of the proposed public-private partnership
27 agreement;

28 (b) The duties and responsibilities to be performed by the private
29 partner or private partners;

30 (c) The methods of oversight to be employed by the department;

31 (d) The duties and responsibilities that are to be performed by the

1 department and any other parties to the contract;

2 (e) The evaluation factors and the relative weight of each factor to
3 be used in the scoring of awards;

4 (f) Plans for financing and operating the project and the revenue,
5 service payments, bond financings, and appropriations of public funds
6 needed for the qualifying project;

7 (g) Comprehensive documentation of the experience, capabilities,
8 capitalization and financial condition, and other relevant qualifications
9 of the private entity submitting the proposal;

10 (h) The ability of a private partner or private partners to quickly
11 respond to the needs presented in the request for proposals and the
12 importance of economic development opportunities represented by the
13 project. In evaluating proposals, preference shall be given to a plan
14 that includes the involvement of small businesses as subcontractors, to
15 the extent that small businesses can provide services in a competitive
16 manner, unless any preference interferes with the qualification for
17 federal or other funds; and

18 (i) Other information required by the department to evaluate the
19 proposals submitted and the overall proposed public-private partnership.

20 (5) A private entity desiring to be a private partner shall
21 demonstrate to the satisfaction of the department that it is capable of
22 performing any duty, responsibility, or function it may be authorized or
23 directed to perform as a term or condition of the public-private
24 partnership agreement.

25 (6) A request for proposals may be canceled, or all proposals may be
26 rejected, if it is determined in writing that such action is taken in the
27 best interest of the State of Nebraska and approved by the purchasing
28 officer.

29 (7) Upon execution of a public-private partnership agreement, the
30 department shall ensure that the contract clearly identifies that a
31 public-private partnership is being utilized.

1 (8) The department shall:

2 (a) Adhere to the rules and regulations adopted and promulgated
3 under this section when utilizing a public-private partnership for
4 financing capital projects; and

5 (b) Electronically report annually to the Agriculture and Natural
6 Resources Committee of the Legislature regarding private-public
7 partnerships which have been considered or are approved pursuant to this
8 section.

9 **Sec. 16.** Section 66-2305, Revised Statutes Cumulative Supplement,
10 2024, is amended to read:

11 66-2305 (1) The department shall create the Nuclear and Hydrogen
12 Industry Work Group.

13 (2) The work group shall consist of the following twelve members:

14 (a) One representative of the Nebraska community college system;

15 (b) One representative of the Nebraska state college system;

16 (c) Two representatives of the nuclear industry;

17 (d) Two representatives of the hydrogen industry;

18 (e) One representative of a public power district;

19 (f) Two at-large members;

20 (g) The Director of Economic Development or a designee of the
21 director;

22 (h) The chairperson of the Agriculture and Natural Resources
23 Committee of the Legislature or a designee of the chairperson; and

24 (i) The chairperson of the Government, Military and Veterans Affairs
25 Committee of the Legislature or a designee of the chairperson.

26 (3) The work group members described in subdivisions (2)(a) through
27 (f) of this section shall be appointed by the Governor. The work group
28 members described in subdivisions (2)(h) and (i) of this section shall
29 serve as ex officio, nonvoting members.

30 (4)(a) Each work group member described in subdivisions (2)(a)
31 through (f) of this section may receive a per diem of sixty dollars for

1 each day such member attends a meeting of the work group or is engaged in
2 matters concerning the work group, except that no work group member shall
3 receive more than one thousand dollars in per diems per year under this
4 subdivision.

5 (b) Each such work group member shall be reimbursed for travel and
6 lodging expenses for the performance of such member's duties while
7 carrying out the Nuclear and Hydrogen Development Act as provided in
8 sections 81-1174 to 81-1177 to be paid out of the Nuclear and Hydrogen
9 Development Fund.

10 **Sec. 17.** Section 70-1003, Revised Statutes Supplement, 2025, is
11 amended to read:

12 70-1003 (1)(a) There is hereby established an independent board to
13 be known as the Nebraska Power Review Board. The board shall consist of
14 five members, including at least one engineer, at least one attorney, and
15 three additional persons. No more than one person who is or who has
16 within four years preceding such person's appointment been either a
17 director, an officer, or an employee of any electric utility or an
18 elective state officer shall serve on the board at the same time. Any
19 board member who previously was either a director, an officer, or an
20 employee of any electric utility within four years preceding such board
21 member's appointment shall refrain from taking any action or making any
22 decision in any proceeding before the board that involves such electric
23 utility for a period of four years after the date such board member
24 ceased being a director, an officer, or an employee of such electric
25 utility.

26 (b) Members of the board shall be appointed by the Governor subject
27 to the approval of the Legislature. Upon expiration of the terms of the
28 members first appointed, the successors shall be appointed for terms of
29 four years. No member of the board shall serve more than three
30 consecutive terms. Any vacancy on the board arising other than from the
31 expiration of a term shall be filled by appointment for the unexpired

1 portion of the term, and any person appointed to fill a vacancy on the
2 board shall be eligible for reappointment for two more consecutive terms.
3 No more than three members of the board shall be registered members of
4 that political party represented by the Governor.

5 (2) Each member of the board shall receive one hundred dollars per
6 day for each day actually and necessarily engaged in the performance of
7 his or her duties, but not to exceed seven thousand dollars in any one
8 year, except for the member designated to represent the board on the
9 Southwest Power Pool Regional State Committee or its equivalent
10 successor, who shall receive two hundred fifty dollars for each day
11 actually and necessarily engaged in the performance of his or her duties,
12 not to exceed thirty-five thousand dollars in any one year. If the member
13 designated to represent the board on the Southwest Power Pool Regional
14 State Committee should for any reason no longer serve in that capacity
15 during a year, the pay received while serving in such capacity shall not
16 be used for purposes of calculating the seven-thousand-dollar limitation
17 for board members not serving in that capacity. When another board member
18 acts as the proxy for the designated Southwest Power Pool Regional State
19 Committee member, he or she shall receive the same pay as the designated
20 member would have for that activity. Pay received while serving as proxy
21 for such designated member shall not be used for purposes of determining
22 whether the seven-thousand-dollar limitation has been met for board
23 members not serving as such designated member. Total pay to board members
24 for activities related to the Southwest Power Pool shall not exceed an
25 aggregate total of forty thousand dollars in any one year. Each member
26 shall be reimbursed for expenses while so engaged as provided in sections
27 81-1174 to 81-1177. The board shall have jurisdiction as provided in
28 Chapter 70, article 10.

29 (3) The board shall elect from their members a chairperson and a
30 vice-chairperson. Decisions of the board shall require the approval of a
31 majority of the members of the board.

1 (4) The board shall employ an executive director and may employ such
2 other staff necessary to carry out the duties pursuant to Chapter 70,
3 article 10. The executive director shall serve at the pleasure of the
4 board and shall be solely responsible to the board. The executive
5 director shall be responsible for the administrative operations of the
6 board and shall perform such other duties as may be delegated or assigned
7 to him or her by the board. The board may obtain the services of experts
8 and consultants necessary to carry out the board's duties pursuant to
9 Chapter 70, article 10.

10 (5) The board shall publish and submit a biennial report with annual
11 data to the Governor, with copies to be filed with the Clerk of the
12 Legislature and with the Department of Water, Energy, and Environment.
13 The report submitted to the Clerk of the Legislature shall be submitted
14 electronically. The department shall consider the information in the
15 Nebraska Power Review Board's report when the department prepares its own
16 reports pursuant to sections 81-1606 and 81-1607. The report of the board
17 shall include:

18 (a) The assessments for the fiscal year imposed pursuant to section
19 70-1020;

20 (b) The gross income totals for each category of the industry and
21 the industry total;

22 (c) The number of suppliers against whom the assessment is levied,
23 by category and in total;

24 (d) The projected dollar costs of generation, transmission, and
25 microwave applications, approved and denied;

26 (e) The actual dollar costs of approved applications upon
27 completion, and a summary of an informational hearing concerning any
28 significant divergence between the projected and actual costs;

29 (f) A description of Nebraska's current electric system and
30 information on additions to and retirements from the system during the
31 fiscal year, including microwave facilities;

1 (g) A statistical summary of board activities and an expenditure
2 summary;

3 (h) A roster of power suppliers in Nebraska and the assessment each
4 paid; and

5 (i) Appropriately detailed historical and projected electric supply
6 and demand statistics, including information on the total generating
7 capacity owned by Nebraska suppliers and the total peak load demand of
8 the previous year, along with an indication of how the industry will
9 respond to the projected situation.

10 (6) The board may, in its discretion, hold public hearings
11 concerning the conditions that may indicate that retail competition in
12 the electric industry would benefit Nebraska's citizens and what steps,
13 if any, should be taken to prepare for retail competition in Nebraska's
14 electricity market. In determining whether to hold such hearings, the
15 board shall consider the sufficiency of public interest.

16 (7) The board may, at any time deemed beneficial by the board,
17 submit a report to the Governor with copies to be filed with the Clerk of
18 the Legislature and the Agriculture and Natural Resources Committee of
19 the Legislature. The report filed with the Clerk of the Legislature and
20 the committee shall be filed electronically. The report may include:

21 (a) Whether or not a viable regional transmission organization and
22 adequate transmission exist in Nebraska or in a region which includes
23 Nebraska;

24 (b) Whether or not a viable wholesale electricity market exists in a
25 region which includes Nebraska;

26 (c) To what extent retail rates have been unbundled in Nebraska;

27 (d) A comparison of Nebraska's wholesale electricity prices to the
28 prices in the region; and

29 (e) Any other information the board believes to be beneficial to the
30 Governor, the Legislature, and Nebraska's citizens when considering
31 whether retail electric competition would be beneficial, such as, but not

1 limited to, an update on deregulation activities in other states and an
2 update on federal deregulation legislation.

3 (8) The board may establish working groups of interested parties to
4 assist the board in carrying out the powers set forth in subsections (6)
5 and (7) of this section.

6 **Sec. 18.** Section 72-2008, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 72-2008 The mission of the Niobrara Council is to assist in all
9 aspects of the management of the Niobrara scenic river corridor since
10 portions of the Niobrara River have been designated as a national scenic
11 river under 16 U.S.C. 1274(a)(117), as such section existed on May 24,
12 1991, giving consideration and respect to local and governmental input
13 and private landowner rights, and to maintain and protect the integrity
14 of the resources associated with the Niobrara scenic river corridor. The
15 council shall perform management functions related to the Niobrara scenic
16 river corridor, including, but not limited to, those authorized and
17 delegated to it by the National Park Service. The council may promulgate
18 its own rules and internal policies to carry out the purposes of the
19 Niobrara Scenic River Act. The Game and Parks Commission may provide
20 administrative, budgetary, operational, and programmatic support when
21 requested by the council to carry out its duties. In the Niobrara scenic
22 river corridor, the council may hold title to real estate in the name of
23 the council. The council may purchase, accept gifts of, or trade real
24 estate and may obtain conservation easements as provided in the
25 Conservation and Preservation Easements Act. Acquisition of conservation
26 easements outside the boundaries of the Niobrara scenic river corridor
27 shall require the approval of the appropriate governing body as provided
28 in section 76-2,112. On December 1, 2016, and on each December 1
29 thereafter, the council shall electronically submit an annual report to
30 the Clerk of the Legislature and the chairperson of the Agriculture and
31 Natural Resources Committee of the Legislature describing expenditures

1 made pursuant to the Niobrara Scenic River Act.

2 **Sec. 19.** Section 81-15,327, Revised Statutes Supplement, 2025, is
3 amended to read:

4 81-15,327 (1) The department shall review and evaluate the studies
5 and assessments carried out by Illinois, Vermont, and Washington
6 regarding whether products or batteries that are not currently covered by
7 the Safe Battery Collection and Recycling Act should be covered at a
8 later date. The department may review similar studies or assessments
9 carried out by any other state or person.

10 (2) No later than May 30, 2028, the department shall electronically
11 submit a report to the Agriculture and Natural Resources Committee of the
12 Legislature. The report shall include the findings and recommendations of
13 any study or assessment reviewed by the department under this section.
14 The report may include recommendations for legislation based on the
15 department's evaluation of the studies and assessments reviewed by the
16 department.

17 **Sec. 20.** Section 81-1604, Revised Statutes Supplement, 2025, is
18 amended to read:

19 81-1604 (1) The Legislature finds that:

20 (a) Comprehensive planning enables the state to address its energy
21 needs, challenges, and opportunities and enhances the state's ability to
22 prioritize energy-related policies, activities, and programs; and

23 (b) Meeting the state's need for clean, affordable, and reliable
24 energy in the future will require a diverse energy portfolio and a
25 strategic approach, requiring engagement of all energy stakeholders in a
26 comprehensive planning process.

27 (2) The Department of Water, Energy, and Environment shall develop
28 an integrated and comprehensive strategic state energy plan and review
29 such plan periodically as the department deems necessary. The department
30 may organize technical committees of individuals with expertise in energy
31 development for purposes of developing the plan. If the department forms

1 an advisory committee pursuant to subdivision (58) of section 81-1504 for
2 purposes of such plan, the chairperson of the Appropriations Committee of
3 the Legislature, the chairperson of the Agriculture and Natural Resources
4 Committee of the Legislature, and three members of the Legislature
5 selected by the Executive Board of the Legislative Council shall be
6 nonvoting, ex officio members of such advisory committee.

7 (3) The strategic state energy plan shall include short-term and
8 long-term objectives that will ensure a secure, reliable, and resilient
9 energy system for the state's residents and businesses; a cost-
10 competitive energy supply and access to affordable energy; the promotion
11 of sustainable economic growth, job creation, and economic development;
12 and a means for the state's energy policy to adapt to changing
13 circumstances.

14 (4) The strategic state energy plan shall include, but not be
15 limited to:

16 (a) A comprehensive analysis of the state's energy profile,
17 including all energy resources, end-use sectors, and supply and demand
18 projections;

19 (b) An analysis of other state energy plans and regional energy
20 activities which identifies opportunities for streamlining and
21 partnerships; and

22 (c) An identification of goals and recommendations related to:

23 (i) The diversification of the state's energy portfolio in a way
24 that balances the lowest practicable environmental cost with maximum
25 economic benefits;

26 (ii) The encouragement of state and local government coordination
27 and public-private partnerships for future economic and investment
28 decisions;

29 (iii) The incorporation of new technologies and opportunities for
30 energy diversification that will maximize Nebraska resources and support
31 local economic development;

1 (iv) The interstate and intrastate promotion and marketing of the
2 state's renewable energy resources;

3 (v) A consistent method of working with and marketing to energy-
4 related businesses and developers;

5 (vi) The advancement of transportation technologies, alternative
6 fuels, and infrastructure;

7 (vii) The development and enhancement of oil, natural gas, and
8 electricity production and distribution;

9 (viii) The development of a communications process between energy
10 utilities and the department for responding to and preparing for
11 regulations having a statewide impact; and

12 (ix) The development of a mechanism to measure the plan's progress.

13 **Sec. 21.** Section 84-120, Reissue Revised Statutes of Nebraska, is
14 amended to read:

15 84-120 If the Lieutenant Governor or Speaker of the Legislature
16 becomes incapable of performing the duties of Governor as provided by
17 Article IV, section 16, of the Constitution of Nebraska, the duties of
18 Governor shall be performed in the following order: Chairperson of the
19 Executive Board of the Legislative Council, Chairperson of Committee on
20 Committees, Chairperson of Committee on Judiciary, Chairperson of
21 Committee on Government, Military and Veterans Affairs, Chairperson of
22 Committee on Appropriations, Chairperson of Committee on Revenue,
23 Chairperson of Committee on Education, Chairperson of Committee on
24 Banking, Commerce and Insurance, Chairperson of Committee on Agriculture
25 and Natural Resources, ~~Chairperson of Committee on Agriculture,~~
26 Chairperson of Committee on Health and Human Services, Chairperson of
27 Committee on General Affairs, Chairperson of Committee on Urban Affairs,
28 Chairperson of Committee on Business and Labor, ~~and~~ Chairperson of
29 Committee on Transportation, and Chairperson of Committee on
30 Telecommunications and Technology, until the vacancy is filled.

31 **Sec. 22.** Section 86-331, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 86-331 (1) It is the intent of the Legislature to ensure that all
3 federal, state, and local government funding for broadband infrastructure
4 and services in Nebraska be leveraged strategically to ensure that all
5 Nebraskans have access to affordable, reliable broadband services before
6 January 1, 2028. To accomplish this intent, the Nebraska Broadband Office
7 is created. The office shall be headed by the Director of Broadband. The
8 director shall be appointed by and serve at the pleasure of the Governor
9 with the approval of a majority of the Legislature. For administrative
10 and budgetary purposes, the Nebraska Broadband Office shall be located in
11 the Department of Transportation. All administrative and budgetary
12 decisions for the Nebraska Broadband Office shall be made by the Director
13 of Broadband.

14 (2) The Nebraska Broadband Office shall:

15 (a) Through active outreach, collaborate with officials at all
16 levels of government and with stakeholders, which may include, but not be
17 limited to, businesses and industries, community foundations, local
18 governments, local or regional economic development organizations,
19 schools, colleges, other educational entities, public libraries, health
20 care institutions, financial institutions, agricultural producers,
21 telecommunications providers, public power districts, electric
22 cooperatives, nonprofit organizations, and other interested entities;

23 (b) Through such collaboration, develop a strategic plan that
24 maximizes the use of public and private resources and encourages
25 innovative models for ownership of infrastructure that is used for both
26 private and public purposes;

27 (c) Direct the coordination among state agencies, boards, and
28 commissions on policy matters affecting use of federal or state funding
29 for broadband infrastructure deployment, operation, and maintenance;

30 (d) Conduct state advocacy on broadband issues at the federal level,
31 including the accuracy of federal mapping and speed data;

1 (e) Ensure that all governmental funding is utilized in a cost-
2 effective and accountable manner for Nebraska broadband projects;

3 (f) Oversee the coordination of programs for broadband users, such
4 as libraries and schools, and digital equity and inclusion projects;

5 (g) Provide resources and assistance for local and regional
6 broadband planning; and

7 (h) Provide resources and information to the public through a
8 website and other communication modes.

9 (3) If any final decision of the Nebraska Broadband Office relating
10 to funding for broadband projects is appealed to district court, the
11 appeal shall take precedence on the trial docket over all other cases and
12 shall be assigned for hearing, trial, or argument at the earliest
13 practicable date and expedited in every way.

14 (4)(a) On or before December 1 of each year, the Nebraska Broadband
15 Office shall file with the Clerk of the Legislature an annual report on
16 the status of broadband within the State of Nebraska. The report shall:

17 (i) Describe the status of all publicly administered broadband
18 deployment programs, including the number of projects funded through
19 October of the report year;

20 (ii) Describe the quality of broadband service being provided to
21 Nebraska residents;

22 (iii) Provide any updates to the strategic plan developed under
23 subdivision (2)(b) of this section;

24 (iv) Summarize the Nebraska Broadband Office's outreach efforts and
25 collaboration with all interested stakeholders;

26 (v) Provide an update on efforts to promote digital equity and
27 inclusion on behalf of Nebraska residents; and

28 (vi) Provide an update on state advocacy on broadband issues being
29 conducted at the federal level.

30 (b) Upon receipt of such report, the ~~Transportation~~ and
31 Telecommunications and Technology Committee of the Legislature shall hold

1 a public hearing to allow an opportunity for public comment on the
2 report.

3 **Sec. 23.** Section 86-333, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 86-333 (1) The Nebraska Broadband Office may create and maintain an
6 official Nebraska location fabric broadband access map showing broadband
7 availability and quality of service for all serviceable locations in
8 Nebraska utilizing any federal funding that is made available for such
9 purpose. For purposes of this section, serviceable location means any
10 residence, dwelling, business, or building where an entity provides or
11 may provide broadband services.

12 (2) The Nebraska Broadband Office may contract with private parties
13 to create, improve, and maintain the map. When contracting with private
14 parties, the office shall give preference to contractors providing
15 mapping services to the Federal Communications Commission. The office may
16 collect from providers of broadband services any information necessary to
17 establish and update the map. Any information provided to the office by a
18 provider of broadband services pursuant to this section that is
19 confidential, proprietary, or a trade secret as defined in section 87-502
20 shall be treated as such by the office.

21 (3) Any recipient of support from the Nebraska Telecommunications
22 Universal Service Fund shall comply with the provisions of this section.
23 Any grant recipient under the Nebraska Broadband Bridge Act, including
24 any entity that operates as an eligible telecommunications carrier in
25 Nebraska as defined in section 86-1302 that wishes to participate in the
26 Broadband Bridge Program created under section 86-1303, either directly
27 or as a challenging party under section 86-1307, shall comply with the
28 provisions of this section. Any grant recipient of federal broadband
29 funding administered by the Nebraska Broadband Office shall comply with
30 the provisions of this section.

31 (4) After the Federal Communications Commission completes the

1 national Broadband Serviceable Location Fabric and accompanying National
2 Broadband Availability Map, the Nebraska Broadband Office shall annually
3 evaluate whether the continued maintenance of any annually updated
4 Nebraska location fabric broadband access map created and maintained in
5 accordance with this section is necessary. The office shall report its
6 annual findings pursuant to this subsection to the ~~Transportation and~~
7 Telecommunications and Technology Committee of the Legislature.

8 (5) The Nebraska Broadband Office shall utilize funding provided by
9 the federal Broadband Equity, Access, and Deployment Program authorized
10 under the federal Infrastructure Investment and Jobs Act, Public Law
11 117-58, to carry out this section.

12 **Sec. 24.** Section 86-515, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 86-515 (1) The Nebraska Information Technology Commission is
15 created. The commission shall consist of (a) one member representing
16 elementary and secondary education, (b) one member representing
17 postsecondary education, (c) the Governor or his or her designee, (d) one
18 member representing communities, and (e) five members representing the
19 general public who have experience in developing strategic plans and
20 making high-level business decisions. Of the members representing the
21 general public, the principal business or occupation of at least one such
22 member shall be agriculture. A member of the ~~Transportation and~~
23 Telecommunications and Technology Committee of the Legislature shall be
24 appointed by the Executive Board of the Legislative Council to serve as
25 an ex officio, nonvoting member of the commission. The Executive Board
26 shall make the initial appointment of such member after January 5, 2011,
27 and shall appoint a member every two years after the initial appointment.
28 At any time that there is not a member of the Educational Service Unit
29 Coordinating Council serving on the Nebraska Information Technology
30 Commission, the technical panel established pursuant to section 86-521,
31 or any working groups established pursuant to sections 86-512 to 86-524

1 that establish, coordinate, or prioritize needs for education, the
2 Governor shall appoint to the commission one member who serves on the
3 Educational Service Unit Coordinating Council.

4 (2) The Governor or a designee of the Governor shall serve as
5 chairperson of the commission.

6 (3) The members of the commission other than the legislative member
7 shall be appointed by the Governor with the approval of a majority of the
8 Legislature. Members of the commission shall serve for terms of four
9 years, except that two members initially appointed to represent the
10 general public shall be appointed for a term of two years and any member
11 appointed to represent the Educational Service Unit Coordinating Council
12 shall be appointed for a term of one year. Members shall be limited to
13 two consecutive terms. The Governor or his or her designee shall serve on
14 the commission for his or her term. The legislative member of the
15 commission shall serve until he or she is reappointed or a successor is
16 appointed. Each member shall serve until the appointment and
17 qualification of his or her successor. In case of a vacancy occurring
18 prior to the expiration of the term of a member, the appointment shall be
19 made only for the remainder of the term.

20 (4) Members shall be reimbursed for expenses as provided in sections
21 81-1174 to 81-1177.

22 (5) The commission may employ or designate an executive director to
23 provide administrative and operational support for the commission. The
24 Department of Administrative Services and Nebraska Educational
25 Telecommunications Commission shall assist with administrative and
26 operational support for the Nebraska Information Technology Commission as
27 necessary to carry out its duties.

28 **Sec. 25.** Section 86-524, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 86-524 (1) The Appropriations Committee and the Telecommunications
31 and Technology Transportation Committee of the Legislature shall jointly

1 review sections 86-512 to 86-524 before January 1, 2001, and every two
2 years thereafter. The Executive Board of the Legislative Council shall
3 designate staff with appropriate technical experience to provide the
4 staff support for the review. The committees shall establish criteria to
5 be used for the review in accordance with the following policy
6 objectives. It shall be the policy of the state to:

7 (a) Use information technology in education, communities, including
8 health care and economic development, and every level of government
9 service to improve economic opportunities and quality of life for all
10 Nebraskans regardless of location or income;

11 (b) Stimulate the demand to encourage and enable long-term
12 infrastructure innovation and improvement; and

13 (c) Organize technology planning in new ways to aggregate demand,
14 reduce costs, and create support networks; encourage collaboration
15 between communities of interest; and encourage competition among
16 technology and service providers.

17 (2) In the review, the committees shall determine the extent to
18 which:

19 (a) The vision has been realized and short-term and long-term
20 strategies have been articulated and employed;

21 (b) The statewide technology plan and other activities of the
22 commission have improved coordination and assisted policymakers;

23 (c) An information technology clearinghouse has been established,
24 maintained, and utilized of Nebraska's information technology
25 infrastructure and of activities taking place in the state involving
26 information technology, and the information flow between and among
27 individuals and organizations has been facilitated as a result of the
28 information technology clearinghouse;

29 (d) Policies, standards, guidelines, and architectures have been
30 developed and observed;

31 (e) Recommendations made by the commission to the Governor and

1 Legislature have assisted policy and funding decisions;

2 (f) Input and involvement of all interested parties has been
3 encouraged and facilitated; and

4 (g) Long-term infrastructure innovation, improvement, and
5 coordination has been planned for, facilitated, and achieved with minimal
6 barriers and impediments.

7 **Sec. 26.** Section 86-1068, Revised Statutes Supplement, 2025, is
8 amended to read:

9 86-1068 (1) For purposes of this section, originating service
10 provider means the telecommunications service provider, whether by
11 wireline or wireless service, or the voice over Internet protocol service
12 provider providing the capability for customers to originate 911 calls.

13 (2)(a) Except as provided in subdivision (2)(c) of this section, or
14 unless otherwise required by the Federal Communications Commission, no
15 later than January 1, 2026, an originating service provider and the next-
16 generation 911 service contractor shall cause:

17 (i) All 911 calls to be transmitted to the next-generation 911
18 network that allows 911 calls to be answered; and

19 (ii) All translation and routing to be completed to deliver all 911
20 calls, including associated location information in the requested
21 Internet protocol-enabled service format, to the next-generation 911
22 network that allows 911 calls to be answered.

23 (b) No later than ten months prior to the date set forth in
24 subdivision (2)(a) of this section, an originating service provider and
25 the next-generation 911 service contractor shall enter into an agreement
26 to cause the requirements of such subdivision to be met. If the
27 originating service provider and the next-generation 911 service
28 contractor have not entered into an agreement by such date, the
29 originating service provider and the next-generation 911 service
30 contractor shall notify the Public Service Commission to seek resolution
31 of any unresolved issues in accordance with the commission's policies

1 relating to interconnection arbitration and mediation.

2 (c) An originating service provider may enter into an agreement with
3 the commission to establish an alternative timeframe for meeting the
4 requirements of subdivision (2)(a) of this section. The originating
5 service provider shall notify the commission of the dates and terms of
6 the alternative timeframe within thirty days after entering into such
7 agreement.

8 (3)(a) Except as provided in subdivision (3)(c) of this section, or
9 unless otherwise required by the Federal Communications Commission, no
10 later than January 1, 2026, a provider of telecommunications relay
11 services and the next-generation 911 service contractor shall cause:

12 (i) All 911 calls to be transmitted to the next-generation 911
13 network that allows 911 calls to be answered; and

14 (ii) All translation and routing to be completed to deliver all 911
15 calls, including associated location information if received from the
16 originating service provider in the requested Internet protocol-enabled
17 service format, to the next-generation 911 network that allows 911 calls
18 to be answered.

19 (b) No later than ten months prior to the date set forth in
20 subdivision (3)(a) of this section, a provider of telecommunications
21 relay services and the next-generation 911 service contractor shall enter
22 into an agreement to cause the requirements of such subdivision to be
23 met. If the provider of telecommunications relay services and the next-
24 generation 911 service contractor have not entered into an agreement by
25 such date, the provider of telecommunications relay services and the
26 next-generation 911 service contractor shall notify the Public Service
27 Commission to seek resolution of any unresolved issues in accordance with
28 the commission's policies relating to interconnection arbitration and
29 mediation.

30 (c) A provider of telecommunications relay services may enter into
31 an agreement with the commission to establish an alternative timeframe

1 for meeting the requirements of subdivision (3)(a) of this section. The
2 telecommunications relay provider shall notify the commission of the
3 dates and terms of the alternative timeframe within thirty days after
4 entering into such agreement.

5 (4) No later than November 15, 2024, and no later than November 15
6 of each year thereafter, the next-generation 911 service contractor shall
7 submit an annual report electronically to the ~~Transportation~~ and
8 Telecommunications and Technology Committee of the Legislature and to the
9 commission on the capabilities and redundancies of the next-generation
10 911 service network.

11 (5) Nothing in this section shall be construed to modify or change
12 any requirement for an originating service provider to file a report with
13 state and federal entities, including with public safety answering points
14 and local governing bodies, in accordance with applicable local, state,
15 or federal regulations and policies, regarding any impediment to
16 transmitting and delivering 911 calls to the next-generation 911 network.

17 **Sec. 27.** This act becomes operative on January 1, 2027.

18 **Sec. 28.** Original sections 2-409, 2-3226.01, 2-3414, 37-431,
19 37-1406, 46-1305, 50-447, 50-448, 54-642, 72-2008, 84-120, 86-331,
20 86-333, 86-515, and 86-524, Reissue Revised Statutes of Nebraska,
21 sections 2-3615, 39-2825, and 66-2305, Revised Statutes Cumulative
22 Supplement, 2024, and sections 46-1304, 50-1601, 61-227, 61-520, 70-1003,
23 81-15,327, 81-1604, and 86-1068, Revised Statutes Supplement, 2025, are
24 repealed.